



DEPARTMENT OF PUBLIC SAFETY

Division of Fire Prevention and Control

CODE ENFORCEMENT AND CERTIFICATION OF INSPECTORS FOR PUBLIC SCHOOLS, CHARTER SCHOOLS AND JUNIOR COLLEGES

8 CCR 1507-30

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

ARTICLE 1 – Purpose and Authority to Promulgate Rules

1.1 Purpose:

- 1.1.1 These rules establish uniform standards and minimum requirements for the construction, inspection, and maintenance of public school buildings and structures.
- 1.1.2 The purpose of these rules is to ensure that public school buildings or structures are constructed and inspected in compliance with Sections 22-32-124, 23-71-122, C.R.S., adopted codes, and applicable rules.

1.2 Technical Rationale

- 1.2.1 The technical requirements of these rules are supported primarily by codes developed by the International Code Council, a membership association dedicated to building safety and fire prevention. These rules establish minimum requirements for building systems using prescriptive and performance related provisions, which are widely used to construct residential and commercial buildings, including homes and schools.

1.3 Statutory Authority

- 1.3.1 Sections 22-32-124, 23-71-122, and 24-33.5-1203, C.R.S. establish the authority and duty of the Division to conduct or oversee the necessary plan reviews, issue building permits, and cause the necessary inspections to be performed as required by the adopted codes for buildings and structures of public schools, institute charter schools, charter schools, and junior colleges.
- 1.3.2 Section 24-33.5-1213.5, C.R.S. establishes the authority and duty of the Division to certify persons to conduct Building Code plan reviews and inspections for buildings and structures of public schools, institute charter schools, charter schools, and junior colleges. Such persons are reviewed and certified as part of the Prequalified Building Department process or through Delegated Building Inspector certification.
- 1.3.3 Section 24-33.5-1211, C.R.S. establishes the authority and duty of the Division to certify persons to conduct Fire Code plan reviews and inspections for buildings and structures of public schools, institute charter schools, charter schools, and junior colleges.
- 1.3.4 Sections 22-32-124 and 23-71-122, C.R.S. establish the authority of the local fire department or the Division to inspect buildings and structures of a Board when deemed necessary to assure that they are maintained in accordance with the adopted Codes.

- 1.3.5 The Director of the Division is authorized by the provisions of Section 24- 33.5-1203.5, C.R.S. to promulgate rules in order to carry out the duties of the Division. These rules are adopted pursuant to the authority in section 24-33.5-1203.5, C.R.S. and are intended to be consistent with the requirements of the State Administrative Procedure Act, Section 24- 4- 101, et seq. (the "APA"), C.R.S.
- 1.3.6 The Director of the Division is authorized to establish fees and charges necessary to defray the anticipated costs of the program.

ARTICLE 2 – Definitions

- 2.1 The definitions provided in Section 24-33.5-1202, C.R.S. shall apply to these rules. The following additional definitions shall also apply:

ANNUAL PERMIT - An official document issued by the Division, or a Prequalified Building Department, in accordance with the International Building Code and Article 6.9 of these rules.

BOARD - The school district Board of education, charter school, institute charter school, junior college, or their designated representative, subject to these rules.

BUILDING DEPARTMENT - The appropriate Building Department of an authority, county, town, city, or city and county and includes a Building Department within a fire department.

BUILDING PERMIT - An official document issued by the Division or a Prequalified Building Department that authorizes the erection, alteration, demolition and/or moving of buildings and structures.

CERTIFICATE OF COMPLIANCE - An official document issued by the Division or the Prequalified Building Department stating that materials and products meet specified standards, or that work was performed in compliance with approved construction documents, and that the provisions of applicable fire and life safety codes and standards continue to be appropriately maintained.

CERTIFICATE OF OCCUPANCY - An official document issued by the Division or the Prequalified Building Department that authorizes a building or structure to be used or occupied.

CEU - Means continuing education units. Each ten (10) hours of related professional development activities equals one (1) CEU.

COMPANY - A corporation, partnership, firm or association, two (2) or more persons having a joint or common interest, or any other legal or commercial entity.

CORE AND SHELL PERMIT - An official document issued by the Division or the Prequalified Building Department that is limited to authorizing the construction of foundation, columns, floor slabs, roof structure, exterior walls, and exterior glazing to the point of the building being weather tight.

CONSTRUCTION - Work that is not considered as maintenance or service, and that requires a building permit or Annual Permit.

C.R.S. - Means Colorado Revised Statutes

DELEGATED BUILDING INSPECTOR (Also known as Third Party Inspector) - Building inspectors that have been certified by the Division to perform delegated inspection services in accordance with Article 10.1 of these rules.

DEMOLITION PERMIT - An official document issued by the Division or the Prequalified Building Department that is limited to authorizing the demolition of all or part of a building or structure.

DIRECTOR - The Director of the Division of Fire Prevention and Control.

DIVISION - Means the Division of Fire Prevention and Control.

FIRE CHIEF - The chief officer of the fire department serving the jurisdiction, or a duly authorized representative.

FIRE CODE OFFICIAL - The designated authority charged with the administration and enforcement of the Fire Code. Refer to Article 5 of these rules for information pertaining to the definition of the Fire Code Official.

FOUNDATION - Work related to building footings, piers, foundation walls, slabs on grade, under slab and underground building services.

FOUNDATION PERMIT - An official document issued by the Division or the Prequalified Building Department that is limited to authorizing the construction of foundations.

ICC - Means the International Code Council and its legacy codes.

INDIVIDUAL (or PERSON) - Means a person, including an owner, manager, officer, employee, or individual.

INSPECTION, TESTING AND MAINTENANCE PROGRAM - A program conducted by the building owner to satisfy the periodic inspection, testing and maintenance requirements of fire protection and life safety systems as required by applicable codes and standards.

INSTALLATION - The initial placement of equipment or the extension, modification or alteration of equipment after the initial placement.

LOCAL AUTHORITY HAVING JURISDICTION (AHJ) - The Building Department, Fire Chief, Fire Marshal or other designated official of a county, municipality, special authority, or special district that has fire protection and life safety systems enforcement responsibilities and employs or otherwise provides a Certified Inspector.

MAINTENANCE - To sustain in a condition of repair that will allow performance as originally designed or intended.

MAINTENANCE INSPECTIONS - Refers to periodic inspections conducted by the local fire department or the Division to verify conformance with the adopted Fire Code, rules and standards. Such maintenance inspections shall not be considered to relieve the building owner of the responsibility to conduct an inspection, testing and maintenance program for fire protection and life safety systems as required by the adopted Fire Code and Standards.

MECHANICAL PERMIT - An official document issued by the Division or Prequalified Building Department that is limited to authorizing an owner, authorized agent or contractor who desires to erect, install, enlarge, alter, remove, convert or replace a mechanical system, in accordance with the adopted mechanical code.

MOU - Means memorandum of understanding.

NICET - Means the National Institute for Certification in Engineering Technologies.

NFPA - Means the National Fire Protection Association.

PREQUALIFIED BUILDING DEPARTMENT - Means a Building Department that employs certified plans examiners and inspectors that has been approved by the Division and has executed a Memorandum of Understanding with the Division in accordance with Article 4 of these rules.

QUALIFIED FIRE DEPARTMENT - A fire department providing fire protection service for the buildings and structures of the Board that has Certified Fire Inspectors, as defined by Section 24-33.5-1202(2.5), C.R.S., at the appropriate level for the task being performed.

QUALIFIED TRADESPERSON - Means an employee of the Board who has satisfactorily demonstrated to the Division that they either hold a current commercial building inspector certification from ICC or other similar national organization or have at least five (5) years of demonstrated education, training, and experience in the related commercial building construction or inspection field

SERVICE (or REPAIR) - Means to repair in order to return the system to operation as originally designed or intended.

SMALL PROJECT PERMIT - An official document issued by the Division or a Prequalified Building Department in accordance with Article 6.8 of these rules.

SPECIAL INSPECTOR - Individuals that have been certified by the Division to perform special inspection services in accordance with Article 10.2 of these rules.

TEMPORARY CERTIFICATE OF OCCUPANCY - An official document issued by the Division, or the Prequalified Building Department, which authorizes a building or structure to be temporarily used or occupied for a period not to exceed ninety (90) days, unless an extension has been granted by the Division or the Prequalified Building Department.

TEMPORARY CONSTRUCTION TRAILER/OFFICE - A temporary modular building, owned and operated by the contractor that is less than one thousand (1,000) square feet and only placed for the duration of the project. Trailers meeting this definition are exempt from these rules. Trailers not meeting this definition shall be considered as a modular building and permitted as such.

THIRD PARTY INSPECTOR (Also known as Delegated Building Inspector) - Building inspectors that have been certified by the Division to perform delegated inspection services in accordance with Article 10.1 of these rules.

TOTAL PROJECT VALUATION - The construction cost of the project for which the permit is being issued including materials and labor, such as electrical, gas, mechanical, plumbing, equipment, and permanent systems. Such valuation will be calculated using one (1) of the following two (2) methods:

- A) For new construction or additions to existing facilities, construction cost is calculated based on a per square foot cost using the International Code Council's Building Valuation Data Square Foot Construction Cost Table published February 2023 (Copyright 2023 by the International Code Council, Inc. Washington D.C.). No later amendments to or editions to the Cost Table are included. The Division will maintain an electronic copy of this document, which is available for public inspection during regular business hours. Interested parties may inspect the referenced incorporated document and/or obtain certified copies of the document for a reasonable fee by contacting the Fire and Life Safety Section Chief at the Division, 690 Kipling St., Lakewood, CO 80215 and/or the State Depository Libraries. A copy of the document is available directly from the organization originally issuing the document: The International Code Council Regional Office Bookstores, reached by calling 888-ICC-SAFE (888-423-7233) or by the [ICC website](#).
- B) For all other projects, construction cost is equal to the cost of the project as demonstrated by detailed estimates provided by the Business Entity.

ARTICLE 3 - Codes, Documents and Standards Incorporated by Reference

- 3.1 The technical requirements of these rules are supported primarily by codes developed by the International Code Council and the National Fire Protection Association. These two organizations are membership associations dedicated to building safety and fire prevention. These rules establish minimum requirements where the Division is the Authority Having Jurisdiction for building systems using prescriptive and performance related provisions, which are widely used to construct residential and commercial buildings. The appropriate portions of the adopted codes will be applied as prescribed by the adopted codes themselves. Where there are differing provisions for new and existing construction, all work taking place after April 1, 2019 must meet the requirements for new construction, as amended by the provisions of IEBC and NFPA 101.
- 3.2 The following codes and their referenced standards are adopted and promulgated as standards for the construction and maintenance of all property, buildings, and structures owned or operated by a school or school district subject to regulation by the Division in the State of Colorado:
 - 3.2.1 Adopted codes pertinent to these rules shall be as prescribed in 8 CCR 1507-101 BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO.
 - A) For the purposes of these rules, the Division shall enforce the Building Codes as defined in 8 CCR 1507-101 § 3.2.1.
 - B) For the purposes of these rules, the Division shall enforce the Fire Codes as defined in 8 CCR 1507-101 § 3.2.2.

ARTICLE 4 – Prequalification of Building Department.

- 4.1 The Division may prequalify a Building Department to conduct the necessary plan reviews, issue building permits, conduct inspections, issue certificates of occupancy, issue Temporary Certificates of Occupancy, and take enforcement action to ensure that a building or structure has been constructed in conformity with these rules.

- 4.2 In lieu of applying for a building permit through the Division, an affected Board may, at its own discretion, opt to use the appropriate Prequalified Building Department that otherwise has code enforcement jurisdiction over the location in which the school is situated and has entered into a MOU with the Division as the delegated authority to conduct building code plan reviews, inspections and issue certificates of occupancy.
- 4.3 Prequalification Process
- 4.3.1 Application Form: In order to be considered for prequalification, the Building Department shall complete an application form, and include each qualified applicant seeking certification as a plan reviewer or inspector on a public school construction project. Qualified applicants shall comply with the provisions of 8 C.C.R 1507 – 101 BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO. Plan reviewer and Inspector certifications issued by the Division to applicants holding ICC or national certifications will be valid for three (3) years, whereas certifications issued to applicants on the basis of demonstrated education, training, and experience will be valid for one (1) year and will require ICC or national certification prior to renewal.
- 4.3.2 Memorandum of Understanding: After the Division has reviewed the application and determined that the Building Department has plan reviewers and inspectors that have the necessary education, training, and experience, the Division may issue and execute a Memorandum of Understanding (MOU) between the Building Department and the Division. Pursuant to this MOU, the Division may prequalify a Building Department to conduct the necessary plan reviews, issue building permits, conduct inspections, issue Certificates of Occupancy, and issue Temporary Certificates of Occupancy to ensure that a building or structure has been constructed in conformity with the building and fire codes adopted by the Division and take enforcement action.
- A) Nothing in the MOU shall be construed to allow the Building Department to take enforcement action other than in relation to the building codes adopted by the Division.
- B) Nothing in the MOU shall be construed to allow the Division to delegate a Prequalified Building Department without the approval of the Board unless such action is taken for violation of delegated building inspection requirements as described in Article 7.1.2 of these rules.
- C) Nothing in the MOU shall be construed to allow the Building Department to assume authority for plan review and/or inspection services in locations in which it does not otherwise have code enforcement authority.
- 4.4 Duties of Prequalified Building Departments
- 4.4.1 The Prequalified Building Department shall conduct the necessary plan reviews, issue building permits, conduct inspections, issue certificates of occupancy, issue Temporary Certificates of Occupancy, and take enforcement action to ensure that a building or structure is constructed in conformity with the building and fire codes adopted by the Division.
- 4.4.2 The Prequalified Building Department shall not take enforcement action other than in relation to the building codes adopted by the Division.

- 4.4.3 The Prequalified Building Department shall only use plan reviewers and inspectors within their Building Department that have been certified by the Division to work on public school construction projects.
- 4.4.4 The Prequalified Building Department shall cause copies of the building plans to be sent to the local fire department or the Division for review of fire safety issues.
- 4.4.5 If the building or structure is in conformity with the adopted building and fire codes, and if the Qualified Fire Department or the Division certifies that the building or structure is in compliance with the adopted fire code, the Prequalified Building Department shall issue the necessary Certificate of Occupancy prior to use of the building or structure by the permit applicant.
- 4.4.6 If all inspections are not completed and the Board requires immediate occupancy, and if the Board has passed the appropriate inspections, including fire inspections, that indicate there are no life safety issues the Prequalified Building Department may issue a Temporary Certificate of Occupancy to allow the Board to occupy the buildings and structures.
- 4.4.7 The Prequalified Building Department shall attest that inspections are complete and all violations are corrected before the Board is issued a Certificate of Occupancy. Inspection records shall be retained by the Prequalified Building Department for two (2) years after the Certificate of Occupancy is issued.
- 4.4.8 The Prequalified Building Department may set reasonable fees and collect these fees to offset the cost of plan review and inspection of public school construction projects. Public School Boards shall be notified of any adjustment of fees a minimum of thirty (30) days prior to the effective date of the change

ARTICLE 5 – Definition of Fire Code Official and Delegation of Fire Code Authority.

- 5.1 The Fire Code Official for buildings and structures of public schools, institute charter schools, charter schools and junior colleges shall be the Division.
- 5.2 Where the local authority having jurisdiction has Certified Fire Inspectors at the appropriate level for the task, the responsibility of conducting the necessary construction plan reviews and inspections required by the adopted Fire Code will be delegated to the Local Authority having Jurisdiction in the location of the structure. Upon delegation of this responsibility, the local authority having jurisdiction shall be considered as the Fire Code Official.
- 5.3 If the local authority having jurisdiction declines to perform the plan review or any subsequent inspection, or if a Certified Fire Inspector is not available, the Division shall perform the construction plan reviews and inspections required by the adopted Fire Code and shall be considered as the Fire Code Official.
- 5.4 Where the Division serves as the Fire Code Official, it shall seek approval from the local fire department on code provisions requiring approval of the fire chief. In such cases, the Fire Department shall respond within twenty (20) business days in accordance with Section 6.4.4 of these rules. Failure of the Fire Department to respond within the allotted twenty (20) business days will be interpreted as approval of the submitted project. If the local fire department is unwilling or unable to grant approval of those provisions, it may ask, within the allotted twenty (20) days, for assistance from the Division; the submittal of a completed Advanced Service Technical Agreement will be required.

ARTICLE 6 – Building Permit Application

6.1 Notification of Delegation to a Prequalified Building Department.

- 6.1.1 For projects that require a permit that will be reviewed and inspected by a Prequalified Building Department, the Prequalified Building Department or the Board must notify the Division prior to beginning construction. Notification shall include:
- A) Name of project (including school district);
 - B) Location of project;
 - C) Scope of work;
 - D) Projected cost;
 - E) Planned construction start and end times;
 - F) Identification of Fire Code Official (Qualified Fire Department or Division);
 - G) Identification of local fire department (whether qualified or not) to which plans will be submitted; and
 - H) Identification of building code official (Prequalified Building Department).

6.2 Preliminary Application Package Review

- 6.2.1 For any construction project, the Board or the Division may request and hold, a preliminary review meeting with either the Division or the Prequalified Building Department, and the local fire department, at the appropriate design stage of document preparation.
- 6.2.2 If a preliminary review meeting is requested, the following items should be included in the preliminary review package:
- A) A key plan or site plan as applicable, showing the property address(s) (or legal description), boundaries, existing buildings, proposed buildings and/or additions, parking lots, fenced areas, fire hydrants, fire equipment access, water supply and topography.
 - B) Sufficient documentation to illustrate and describe the design of the project, establishing the scope, relationships, forms, size and appearance of the project by means of plans, sections and elevations, typical construction details, and equipment layouts. The documents shall include outline specifications that identify major materials and systems and establish in general their quality levels.
 - C) A code plan that includes the following minimum information:
 - (1) Calculation of the allowable and actual square footage of the new construction;
 - (2) The floor plan of all new construction, existing to remain, and remodel areas;

- (3) The proposed occupancy group(s) of the building. Include daytime use and after-hours use occupancy groups where applicable;
- (4) All fire and smoke rated construction (including rated exit corridors, fire walls, fire barriers, fire partitions, and smoke barriers) and construction capable of resisting the passage of smoke; and
- (5) All exits and all stairways.

6.2.3 The Division, the local fire department, and/or the Board may request a meeting or teleconference, in a timely manner, at any time during the preliminary review. All parties shall make reasonable accommodations for such requested meeting or teleconference.

6.3 Building Permit Application Submittal

6.3.1 For all construction projects not covered under an annual building permit, a small project permit, or a fire protection permit as defined in this Article, the Board must submit a complete plan review application package to the Division or the Prequalified Building Department and the local fire department not less than thirty (30) days prior to beginning construction. The Board may request from the Division or the Prequalified Building Department an exemption to the thirty (30) day minimum submittal period, which will be considered on a case-by-case basis.

6.3.2 The permit application requirements are available on the Division's website.

6.3.3 The building permit application package shall be concurrently submitted to the Division and to the local fire department.

6.4 Plan Review and Permitting

6.4.1 The Division will notify the Board upon receipt of a complete building permit application submittal or if the building permit application is incomplete.

6.4.2 The Building Code plan review shall be completed by a certified building plans examiner within the Division, or by the Prequalified Building Department.

6.4.3 The Fire Code plan review shall be completed by an individual certified as a Fire Inspector III – Plans Examiner within the Division, or by the Qualified Fire Department.

6.4.4 For delegated fire code review and inspection arrangements, the delegated Fire Code Official, as defined in Article 5.2 of these rules, has twenty (20) business days upon receipt of a complete review package, which shall include all life safety systems documents and drawings, "stamped" as required, to submit the completed fire review or Fire Code Review form to the Division or the Prequalified Building Department. Failure of the Fire Code Official to respond within the allotted twenty (20) business days will be interpreted as approval of the submitted project. The Fire Code Official shall forward their approval, or list of comments and corrections, and request for deferred submittals to the Board and the Division or Prequalified Building Department.

6.4.5 The delegated Fire Code Official may request, in writing, an extension from the Division on the basis of the complexity of the building plans. Extension requests shall be copied to the affected Board.

- 6.4.6 The Division, the local fire department and/or the Board may request a meeting or teleconference at any time during the construction document review. The Division shall make reasonable accommodations for such meeting or teleconference.
 - 6.4.7 Upon completion of the building plan review, the Division or the Prequalified Building Department will provide to the Board a comprehensive list of corrections from the building code review to be addressed prior to the issuance of a Building Permit. This list of corrections shall not be considered as all-inclusive and may not be considered as approval of any condition in violation of applicable code. Once all corrections have been satisfactorily addressed and the Fire Code Official has been notified of the project in accordance with Article 6.4.4 or Article 6.8.1 of these rules, the Division or the Prequalified Building Department shall issue the Building Permit.
- 6.5 Phased Permitting
- 6.5.1 Upon request by the Board, the Division may issue phased permits for demolition, construction of foundations, and construction of core and shell, provided that construction documents for that portion of the building or structure being permitted have been submitted per Article 6.3 of these rules. The holder of such permit for demolition or the construction of foundations or vertical construction shall proceed at the holder's own risk with building operation and without assurance that a permit for the entire structure will be granted. Issuance of this permit shall not be considered all-inclusive and may not be considered as approval of any condition in violation of applicable codes.
- 6.6 Required Construction Permits for Fire Code Compliance
- 6.6.1 Deferred design/build (shop drawing) submittals for fire protection and life safety systems are permitted; however, initial construction documents submitted to the Division or Prequalified Building Department under the initial request for building permit shall provide sufficient information to show compliance with Fire Code requirements and coordination between fire systems and other building systems (i.e., HVAC systems, security systems).
 - 6.6.2 Permit submittals for fire protection and life safety systems identified under Section 105.7 of the International Fire Code shall be submitted for plan review and permit issuance in accordance with the requirements established by the Fire Code Official for review and approval prior to beginning installation of the system.
 - A) Fire sprinkler shop drawings shall be submitted to the Fire Code Official in accordance with 8 CCR 1507-11 FIRE SUPPRESSION PROGRAM and the requirements of the Fire Code and NFPA 13 – Standard for the Installation of Sprinkler Systems.
 - 1) Provide the submittal in the format required by the Fire Code Official.
 - 2) Submittal packages shall contain the minimum information required by the adopted Fire Code and NFPA 13.
 - B) Fire alarm shop drawings shall be submitted to the Fire Code Official in accordance with the requirements of the Fire Code and NFPA 72 – National Fire Alarm and Signaling Code.
 - 1) Provide the submittal in the format required by the Fire Code Official.
 - 2). Submittal packages shall contain the minimum information required by the adopted Fire Code and NFPA 72.

- C) Shop (installation) drawings for other systems regulated by the Fire Code shall be submitted to the Fire Code Official in accordance with the Fire Code, and the appropriate reference standard for the system as indicated in the Fire Code.

6.6.3 Minimum qualifications for fire protection and life safety system design and installation.

A) Fire Suppression Systems

- 1) Any installation, modification, alteration, or repair of a fire suppression system shall be in accordance with 8 CCR 1507-11 FIRE SUPPRESSION PROGRAM.

B) Fire Alarm Systems

- 1) The design of any new system or alteration of an existing fire alarm system using the prescriptive requirements of NFPA 72 shall be performed by a person that is currently a professional engineer or certified by NICET at a level III or level IV in fire protection engineering technologies - fire alarm systems, or another nationally recognized organization approved by the Division.
- 2) The design of any new system or alteration of an existing fire alarm system using performance based design methods as described by NFPA 72 or alternative materials and methods as described by the adopted Fire Code shall be performed by a person that is currently a professional engineer.
- 3) The installation of a fire alarm system shall be performed by or supervised by a person that is currently certified at a minimum of NICET level II in fire protection engineering technologies – fire alarm systems, or another nationally recognized organization approved by the Division.

C) Other Fire Protection Systems regulated by the Fire Code.

- 1) The design and installation shall be performed by a company or individual with manufacturer approved training for the specific system, or as otherwise required by the applicable Code section or referenced standard.

6.7 Fire Protection Permits

6.7.1 Fire protection projects involving only the installation, modification, repair or replacement of fire protection and life safety systems or other activities regulated solely by the Fire Code are exempt from the requirements of Article 6.3 of these rules; however, a fire protection permit shall be obtained from the Fire Code Official in accordance with this Article and the IFC.

6.7.2 Submit system shop or installation drawings in accordance with the requirements of Article 6.6 of these rules.

6.8 Small Project Permit

- 6.8.1 In lieu of a full Building Permit, the Division may issue a small construction project permit for certain small projects. Small project permit application requirements differ from full building permit projects, as defined and documented on Division small project application forms and checklists.
- 6.8.2 Small Project Scope: Small projects are limited in scope, as defined by the Small Project Permit Policy, issued by the Division.

6.9 Annual Permits

- 6.9.1 In lieu of an individual permit for each alteration to certain approved mechanical or building installations, the Division or Prequalified Building Departments may issue an Annual Permit, upon application, to any Board regularly employing one or more Qualified Tradespersons in the building, structure, or on the premises owned or operated by the Board. Annual Permits shall remain valid for a period of twelve (12) months from the issuance date. The Board shall notify the Local Fire Department prior to the commencement of work conducted under an Annual Permit. A Prequalified Building Department may also require notification prior to commencement of projects conducted under an Annual Permit.
- 6.9.2 Annual Permit Scope: Annual Permit projects are limited in scope to the following:
- A) Like-for-like replacement of certain previously approved mechanical equipment, as defined in the International Mechanical Code adopted by the Division;
 - B) Installation of non-fire rated doors in non-bearing walls or partitions;
 - C) Adding glazing or window to existing non-fire rated interior doors;
 - D) Replacement of existing panic hardware;
 - E) Replacement of skylight(s) greater than ten (10) feet away from a firewall;
 - F) Installation of vocational instruction equipment (projectors, screens); and
 - G) Demolition or removal of portable modular units.
- 6.9.3 Annual Permit Records: The Board to whom an Annual Permit is issued shall keep a detailed record, including stamped engineered drawings (if applicable), of all replacements made under such Annual Permit.
- 6.9.4 All work completed under an Annual Permit shall be inspected by a Delegated Building Inspector or a Qualified Tradesperson within ten (10) days of completion of a project and such inspections shall be recorded on an inspection log. The Division or the Prequalified Building Department that chooses to issue Annual Permits shall have access to all inspection logs at all times, and such records shall be submitted to the Division or the Prequalified Building Department within thirty (30) days of the expiration date of the Annual Permit.
- 6.9.5 If the inspection logs associated with the Annual Permit demonstrate compliance with the Annual Permit requirements, the Division or the Prequalified Building Department may issue a Certificate of Compliance for projects completed under that permit.

- 6.9.6 If the inspection logs associated with the Annual Permit demonstrate noncompliance with the Annual Permit requirements, the Division will issue a correction notice and may withhold issuing another Annual Permit to the Board until all corrections have been satisfied.

ARTICLE 7 – Construction Inspections

7.1 Building Code Inspections

- 7.1.1 Construction or work for which a permit is required shall be subject to inspection by the Division, a Delegated Building Inspector or a Special Inspector contracted by the Board, or the Prequalified Building Department. Such construction or work shall remain accessible and exposed for inspection purposes until approved. Neither the Division, a Delegated Building Inspector or a Special Inspector contracted by the Board, nor the Prequalified Building Department shall be liable for expense entailed in the removal or replacement of any material required to allow inspection.
- 7.1.2 Delegated Building Inspections: For all building permit applications issued by the Division, the affected Board shall hire and compensate Delegated Building Inspectors certified by the Division to perform inspections. A list of certified Delegated Building Inspectors will be posted on the Division website. If the Board is unable to obtain a Delegated Building Inspector, a Building Department that has been prequalified by the Division shall oversee the project. If the Board is unable to obtain a Delegated Building Inspector and no Building Department has been prequalified, the Division shall conduct, or assist with obtaining, a Delegated Building Inspector to perform the required inspections, and the Board shall compensate the Division or the contracted obtained Delegated Building Inspector for all associated inspection costs.
- A) Prior to commencement of construction on projects requiring delegated building inspections, the Board shall notify the Division of the designated Delegated Building Inspector for the permitted project. The notification shall be made in writing using a form provided by the Division. The Division may request a preconstruction meeting with the Board, the contractor hired to perform the work, and the certified Delegated Building Inspector.
- B) The Division shall require a sufficient number of delegated building inspection reports to be submitted by the inspector based upon the scope and cost of the project to ensure quality inspections are performed. Concurrent with the permit approval, the Division shall issue an Inspection Card specifying the applicable required inspections as set forth in Chapter 1 of the Building Code.
- 1) The inspection card shall be on site throughout the duration of the project.
- C) Violation of Delegated Building Inspection Requirements: If the Division finds that inspections are not completed satisfactorily or that all violations are not corrected, it shall take enforcement action against the appropriate Board pursuant to Article 11 of these rules and may require that the next project undertaken by the Board be delegated to the Prequalified Building Department.
- 7.1.3 For permits issued by the Division, the final inspection shall be conducted only by the Division after all work required by the building permit is completed. Mid-construction inspections may be performed to observe progress and verify compliance with delegated building inspection requirements as deemed necessary by the Division.

- 7.1.4 Delegated Building Inspectors shall include their printed name and state certification number in the appropriate location on the inspection report or card.
- 7.2 Fire Code Inspections
 - 7.2.1 Project sites shall be inspected by the Fire Code Official to verify compliance with the Fire Code and approved construction documents.

Construction inspections shall be conducted by a person certified as Fire Inspector II or Fire Inspector III – Plans Examiner. Delegated building inspection provisions do not apply to the required Fire Code inspections. Fire inspections shall be performed by the Division or the Qualified Fire Department. Neither the Division nor the Qualified Fire Department shall be liable for expenses entailed in the removal or replacement of any material required to allow inspection.
 - 7.2.2 A Certified Fire Inspector shall perform inspections of fire suppression systems in accordance with 8 CCR 1507-11 FIRE SUPPRESSION PROGRAM.
 - A) A Certified Fire Inspector II may perform both inspections (fire suppression system and Fire Code construction).
 - B) If the Fire Code Official does not employ a Certified Fire Inspector II, the Fire Code Official shall obtain the services of a Certified Fire Inspector II or above to perform the suppression system inspections.
- 7.3 Results of all inspections shall be documented on the job site inspection card and in the official records of the inspecting entity, including type of inspection, date of inspection, identification of the responsible individual making the inspection, and comments regarding approval or disapproval of the inspection. Inspection records shall be retained by the inspecting entity for two years after the Certificate of Occupancy is issued.
 - 7.3.1 Certified Fire Inspectors shall include their printed name and State fire inspector certification number in the appropriate locations on the inspection report or card.
- 7.4 Inspection Request Notification to the Division.
 - 7.4.1 The Division shall be provided with notification in writing no later than noon of the Thursday in the week preceding the requested inspection. The Division will make all reasonable efforts to provide the inspection on the requested day or time, provided an inspector is available. If the inspection schedule is full, an alternate day and time will be proposed.
 - 7.4.2 It shall be the duty of the permit holder to provide access to and means for Inspections of such work that are required by this code.
 - 7.4.3 Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval from the appropriate inspection entity. The inspector, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed or notify the permit holder or their agent wherein the same fails to comply with the codes adopted in these rules. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the appropriate inspection entity. The re-inspection shall be requested in accordance with Article 7.4.1 of these rules.

ARTICLE 8 – Certificate of Occupancy

- 8.1 The Board shall not occupy or use a public school building or structure until a Certificate of Occupancy or a Temporary Certificate of Occupancy has been issued by Division, or the Prequalified Building Department.
- 8.2 The Division or the Prequalified Building Department may issue a Temporary Certificate of Occupancy if a Board requires immediate occupancy and if the Board has passed the appropriate inspections, including fire inspections, that indicate there are no life safety issues. The Temporary Certificate of Occupancy shall expire ninety (90) days after the date of issuance. If no renewal of the Temporary Certificate of Occupancy is issued or a permanent Certificate of Occupancy is not issued, the building shall be vacated upon expiration of the Temporary Certificate of Occupancy.

ARTICLE 9 – Maintenance and Complaint Inspections and Inspection, Testing, and Maintenance Programs.

- 9.1 Maintenance and Complaint Inspections.
- 9.1.1 The fire department providing fire protection service or the Division may perform inspections of buildings, facilities, and structures when deemed necessary to assure that they are maintained in accordance with the adopted Fire Code.
- A) Maintenance inspections shall be performed at least annually.
 - B) If the fire department is unable or unwilling to perform maintenance inspections, the Division shall have the authority and duty to perform them.
 - C) If the fire department does not have an inspector certified as a Fire Inspector I or above, the Division will perform regular maintenance inspections for the Board to ensure compliance with these rules and the applicable statutes.
 - D) A copy of all fire code inspection reports involving school property shall be furnished to the Board upon completion of the inspection and the subsequent report.
 - E) All maintenance inspections conducted in or on school property, including tenant space, shall be coordinated with the Board or their designee.
- 9.1.2 Qualified Fire Departments performing maintenance inspections are required to notify the Division that such inspections are being performed and provide documentation when inspections are completed. If notice and/or documentation is not provided, the Division will attempt to contact the Qualified Fire Department. If documentation is still not provided, the Division will have the duty to inspect.
- 9.1.3 Nothing in this Article 9.1 shall prohibit the fire department providing fire protection services from conducting routine assessments of buildings and structures, or prevent the department from correcting violations that pose an immediate threat to life safety. Additionally, nothing in this Article 9.1 shall prohibit the fire department from seeking enforcement action in a court of competent jurisdiction.
- 9.1.4 A fire department providing fire protection service for buildings and structures of a Board that chooses to perform Fire Code inspections may refer notices of deficiencies to the Division for evaluation and enforcement.

- A) Notices of deficiencies and requests for evaluation and enforcement shall be submitted in writing to the Public School Program Administrator as described in Article 12 of these rules.

9.2 Inspection, Testing and Maintenance Programs.

9.2.1 The Board shall ensure that building systems are inspected, tested, and maintained as required by the adopted codes and referenced standards.

9.2.2 Personnel employed by a Board performing inspection, testing, and maintenance programs are not required to be Certified Fire Inspectors.

- A) Exception: Personnel performing work on system components that would require permits, licensing, or registrations under any adopted codes, laws, or rules shall be registered or licensed as appropriate.

9.2.3 Inspection, testing, and maintenance records shall be retained for at least two (2) years. Records shall indicate the procedure or inspection performed by the organization that performed the procedure or inspection, the results, and the date. The Board shall provide these records for review by the Qualified Fire Department or to the Division upon request.

9.2.4 The Board shall report, or cause to be reported in the manner and method required by the Division, all fires that occur within any property, building, and/or structure owned or operated by a school or school district subject to regulation by the Division in the State of Colorado. This requirement shall be met anytime a fire occurs that causes any one (1) of the following conditions:

- A) Activates one (1) of the fire and life safety systems installed in the building or structure (e.g. – fire alarm system, fire suppression system, etc.);
- B) Causes a response from the Fire Department;
- C) Causes the evacuation of any occupants located in the building or structure; or
- D) Results in the deployment and use of a fire extinguisher.

ARTICLE 10 – Building Code and Fire Code Inspector Certification

10.1 Inspectors shall be certified in accordance with the provisions of 8 CCR 1507 – 101 BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO.

10.2 Delegated Building Inspectors

10.2.1 Duties of Delegated Building Inspectors

- A) Delegated Building Inspectors contracted by the Board shall conduct the required inspections and require corrections or modifications as necessary to ensure that a building or structure is constructed in conformity with the building code adopted by the Division.
- B) Delegated Building Inspectors contracted by the Board shall enforce only the codes adopted by the Division.

- C) The Board shall only use inspectors that are certified by the Division to work on public school construction projects.
- D) Delegated Building Inspectors contracted by the Board shall cause copies of their inspection reports to be sent to the Division.
- E) If all inspections are not completed and a building requires immediate occupancy, and if the Board has passed the appropriate inspections that indicate there are no life safety issues, the certified Delegated Building Inspectors contracted by the Board shall notify the Division so that a Temporary Certificate of Occupancy may be issued to allow the Board to occupy the buildings and structures.
- F) Delegated Building Inspectors contracted by the Board shall attest that inspections are complete and all violations are corrected before the Division issued the Board a Certificate of Occupancy. The certified Delegated Building Inspector shall retain inspection records for two (2) years after the Certificate of Occupancy is issued.

10.2.2 Applicants shall complete the following items for application as a Certified Delegated Building Inspector:

- A) Complete the application form for Delegated Building Inspector certification, which is available on the Division website.
- B) Provide a resume and sufficient proof of qualification, including proof of national certifications, or description of equivalent education, training and experience.
- C) Pay the required certification fee.

10.3 Special Inspectors

10.3.1 Duties of Special Inspectors

- A) Special Inspectors contracted by the Board shall conduct the required special inspections and require corrections or modifications as necessary to ensure that a building or structure is constructed in conformity with the building code adopted by the Division.
- B) Special Inspectors contracted by the Board shall enforce only the code adopted by the Division.
- C) The Board shall only use Special Inspectors that are certified by the Division to perform required special inspections on public school construction projects.
- D) Special Inspectors contracted by the Board shall cause copies of their inspection report to be provided to the Division.
- E) Special Inspectors contracted by the Board shall attest that special inspections are complete and all violations are corrected before the Division issued the Board a Certificate of Occupancy or a Certification of Completion. The certified Special Inspector shall retain inspection records for two (2) years after the Certificate of Occupancy or Certificate of Completion is issued.

10.3.2 Applicants shall complete the following items for application as a Certified Special Inspector:

- A) Complete the application form for Special Inspector certification, which is available on the Division website.
- B) Provide documentation of qualifications in conformance with the code adopted.
- C) Pay the required certification fee.

10.4 Fire Inspectors

10.4.1 Duties of Fire Inspectors

- A) Fire Inspectors shall conduct the required plan reviews and inspections and require corrections or modifications as necessary to ensure that a building or structure is constructed in conformity with the fire codes adopted by the Division.
- B) Fire Inspectors shall enforce only the codes adopted by the Division.
- C) Fire Inspectors shall cause copies of their inspection reports to be sent to the Division.
- D) If all inspections are not completed and a building requires immediate occupancy, and if the Board has passed the appropriate inspections that indicate there are no life safety issues, the Fire Inspector may recommend to the Division or the Prequalified Building Department that a Temporary Certificate of Occupancy be issued to allow the Board to occupy the buildings and structures.
- E) Fire Inspectors or their employees shall maintain records of all plan reviews and inspections conducted during the three-year certification period or longer, as required by law. Said records shall be made available for review by the Division upon request.

ARTICLE 11 – Enforcement

11.1 The Director of the Division shall enforce the requirements of the codes adopted in Article 3 of these rules in accordance with the provisions of Section 24-33.5- 1213, C.R.S.

11.1.1 The Director may issue a notice of violation to a person who is believed to have violated the provisions of the Codes as determined by an inspection in accordance with the procedures described in Section 24-33.5-1213, C.R.S.

11.1.2 An enforcement order issued pursuant to Section 24-33.5-1213, C.R.S. may impose a civil penalty depending upon the severity of the alleged violation not to exceed five hundred (\$500) dollars per violation for each day of violation; except that the Director may impose a civil penalty not to exceed one thousand (\$1000) dollars per violation for each day of violation that results in, or may reasonably be expected to result in, serious bodily injury.

11.1.3 The Director may file suit in the district court in the judicial district in which a violation is alleged to have occurred to judicially enforce an enforcement order issued pursuant to Section 24-33.5-1213, C.R.S.

- 11.2 A person who is the subject of, and is adversely affected by, a notice of violation or enforcement order issued pursuant to this Article may appeal such action to the Executive Director of the Department of Public Safety. The Executive Director shall hold a hearing to review such notice or order and take final action in accordance with Section 24-4-103, C.R.S. Final agency action shall be subject to judicial review pursuant to Section 24-4-106, C.R.S.
- 11.3 It is not the intent of this Article to remove, limit, or modify enforcement authority of the fire department providing fire protection service for buildings or structures of a Board.

ARTICLE 12 - Appeals

- 12.1 A board of education, the state charter school institute, a charter school, or a junior college board of trustees that is the subject of, and adversely affected by, a decision or interpretation made by an entity that conducts a plan review or inspection pursuant to Sections 22-32-124 or 23-71-122(1)(v), C.R.S. may appeal such action to the Board of Appeals formed by Section 24-33.5-1213.7, C.R.S.
- 12.1.1 The affected party shall first appeal to the plan review or inspection entity. After consideration, the entity shall issue its final written decision on the matter.
- 12.1.2 If the affected party still disagrees with a decision made by a local authority having jurisdiction or prequalified building department, it may appeal to the Director. After consideration, the Director or their designee shall issue the Division's final written decision on the matter.
- 12.1.3 If the affected party still disagrees, it may appeal to the General Board of Appeals. The appeal shall be filed within thirty (30) days after the date of the final written decision by the Director or their designee. Upon receipt of an appeal, the Division shall notify the Chair of the Board of Appeals and schedule a hearing no more than fifteen (15) days after the date the appeal was filed.
- 12.1.4 An application for appeal shall be based on a claim that the true intent of this code or the standards legally adopted therein have been incorrectly interpreted, the provisions of this code do not fully apply, or an equally good or better form of construction is proposed. The Board of Appeals shall not waive any requirements of the codes or standards; however, the Board of Appeals may recommend alternative materials or methods as provided by the codes or standards. The final written decision of the Board of Appeals is final agency action for the purposes of Section 24-4-106, C.R.S.

ARTICLE 13 – Fees and Charges

- 13.1 Inspector Certification Fees: The Division shall charge the fees for inspector certifications as specified in 8 CCR 1507-101 BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO.
- 13.2 Plan Review, Construction Permit, and Inspection Fees
- 13.2.1 The Division shall charge a fee for plan review and issuance of a permit to cover the actual, reasonable, and necessary expenses of the Division for those expenses related to the public school construction program.
- 13.2.2 The plan review, construction permit, and inspection fees are calculated based on the total project valuation (TPV).

- A) The building inspection component of this fee in Section 13.2.4.A below only includes an allocation of site visits conducted by the Division prior to the issuance of a Certificate of Occupancy in accordance with the categorization outlined in Section 13.2.2.B below. In the event additional inspections by the Division are necessary or requested, additional fees may be assessed as outlined in Section 13.2.6 below.
 - B) The fire inspection component of this fee in this Section includes an allocation of site visits to complete the necessary inspections in accordance with the following categorization. In the event additional inspections by the Division are necessary or requested, additional fees may be assessed as outlined in Section 13.2.6 below.

Under 50,000 sq. ft. - 5 site visits
50,001-100,000 sq. ft. - 10 site visits
100,001-200,000 sq. ft. - 5 additional site visits/each additional 100,000 sq. ft.
 - C) Division inspection fees do not include costs associated with inspections conducted by local fire departments or Delegated Building Inspectors.
- 13.2.3 The Director of the Division will review the fund balance periodically and may reduce or increase the amount of the fee, if necessary, pursuant to Sections 24-75-402(3) and 24-75-402(4), C.R.S.
- 13.2.4 A fee calculator posted on the Division website enables the determination of total fees (plan review and construction permit fees) prior to submittal of a project.
- A) Fees for Building Code reviews performed by the Division, including Portable/Modular Buildings, Re-Roofs, and Boiler/Chiller/Furnace/Air Handling Unit replacement or installation, will be subject to a base fee of \$400.00 plus a fee equal to .0029 times the Total Project Valuation.
 - 1) Annual Permit: \$512.50
 - B) Fees for Fire Code reviews performed by the Division will be subject to a base fee of \$400.00 plus a fee equal to .0029 times the Total Project Valuation.
 - C) Both Building and Fire Code Reviews performed by the Division:
 - 1) Fees will equal the sum of both the Building review fees in Section 13.2.4.A above and the Fire review fees in Section 13.2.4.B above.
- 13.2.5 No less than half of the fees must be submitted prior to commencement of plan review, and the remaining fees must be submitted prior to permit issuance. Inspections shall not be performed until the remainder of the required fees have been paid.
- 13.2.6 Additional inspection fees: The Division may assess a \$410 inspection fee for each inspection in excess of the number allocation by the categorization outlined in Section 13.2.2.B above. Additional inspections exceeding four (4) hours in length, including travel time, will be charged \$110 for each additional hour or portion thereof.
- 13.2.7 Off-hours inspections: The Division may assess an additional off-hours inspection fee of \$200 for inspections requested outside of normal business hours.

- A) Normal inspection hours are Monday through Friday between 7:00 am and 5:00 pm.
 - B) Off-hours inspections are scheduled on an “as-available” basis. The Division is not obligated to provide inspections outside of normal operating hours if an inspector is not available.
- 13.2.8 The Division may assess a fee of \$100 for the replacement of a lost inspection record card.
- 13.2.9 Work commenced before a permit is issued shall be subject to a fee in addition to the required permit fee.
- 13.3 Maintenance Inspection Fees: The following fees shall be charged for maintenance inspections performed by the Division:
 - 0 - 150 Students = \$153.75
 - 151 - 300 Students = \$307.50
 - 301 - 450 Students = \$461.25
 - 451 or more Students = \$615.00
- 13.3.1 Student counts for fees shall be based upon the current pupil membership data published at the time of the inspection by the Colorado Department of Education.
- 13.3.2 Fees are charged per address. Total student counts are considered for consolidated schools located at one address.
- 13.3.3 Failure to pay for Fire Code inspections performed shall result in a notice of violation and enforcement in accordance with Article 11 of these rules.
- 13.4 Fees may be waived or modified when appropriate at the discretion of the Director or their designee. Requests for waiver or modification shall be in writing.

ARTICLE 14 - Inquiries

- 14.1 Questions, clarification, or interpretation of these rules should be addressed in writing to: Fire & Life Safety Section Chief, Colorado Division of Fire Prevention and Control, 700 Kipling St., Suite 4100, Lakewood, CO 80215. Telephone number: (303) 239-4100.

Editor's Notes

History

New rule emer. rule eff. 07/20/2007.
Entire rule eff. 10/30/2007.
Entire rule emer. rule eff. 08/18/2008.
Entire rule eff. 10/30/2008.
Rule 10 eff. 01/30/2009.
Entire rule eff. 12/30/2009.
Rules 3.1.1-3.1.2 emer. rules eff. 08/13/2014.
Entire rule eff. 11/30/2014.
Article 13 eff. 03/02/2018.
Articles 2, 3, 9, 10-13 eff. 03/30/2019.

Rules 4.3.1, 6.1.1, 7.4.1, Articles 11-14 eff. 02/14/2020.

Rules 1.3.1-1.3.3, 2.1, 4.3.2, 4.4.4, 5.4, 6.1.1, 6.4.4, 6.4.7, 6.6, 6.6.1-6.6.2, 6.9.2.4, 9.1.1 D-E, 9.2.4, 13.2, 13.2.4-13.2.5, 13.2.7 eff. 08/14/2020.

Entire rule eff. 01/14/2025.